U.S. Department
of Transportation
**Federal Aviation
Administration**

Office of the Chief Counsel

800 Independence Ave., S.W.
Washington, D.C. 20591

OCT 22 2013

Jeff Morgan
[redacted]

Dear Mr. Morgan:

This letter responds to your request for a legal interpretation that was emailed to my office on September 4, 2013. Specifically, you have asked whether a pilot who holds a type rating limited to SIC privileges may log time as pilot in command (PIC) under § 61.51(e)(1)(i). We previously answered this question in a legal interpretation to Glenn Counsil issued on April 13, 2012.

Section 61.51(e)(1)(i) permits a pilot to log PIC time for flight time as "the sole manipulator of the controls of an aircraft for which the pilot is rated." We have consistently stated that the term "rated," as used in § 61.51(e) refers to the pilot holding the appropriate aircraft ratings (category, class, and type, if a type rating is required) on his or her pilot certificate. See Legal Interpretation to John Speranza (Dec. 4, 2009); Legal Interpretation to Jason E. Herman (May 21, 2009); Legal Interpretation to James R. Knight II (June 3, 1999). We stated in the Counsil Interpretation that, to log PIC time under § 61.51(e)(1)(i), a pilot must hold a type rating that is not subject to a "SIC Privileges Only" limitation.[1] Accordingly, in your scenario, a pilot who holds a type rating limited to SIC privileges for the S-61 may not log time as PIC under § 61.51(e)(1)(i). We have attached the Counsil Interpretation for your consideration.

This response was prepared by Anne Moore, an attorney in the International Law, Legislation, and Regulations Division of the Office of the Chief Counsel. If you have any additional questions regarding this matter, please contact my office at (202) 267-3073.

Sincerely,

Mark W. Bury
Assistant Chief Counsel for International Law,
Legislation, and Regulations Division

[1] The requirement that a pilot who is the sole manipulator controls be rated in the aircraft in order to log PIC time dates back to the Civil Air Regulations. See CAR 43.405. As such, it predates the existence of the SIC type rating which was placed in the regulations in 2005.